

2026:PHHC:086951



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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33055-2026
DECIDED ON: 08.06.2026**

SANTOSH ANANDARAV BAGAL

.....PETITIONER

VERSUS

STATE OF PUNJAB

.....RESPONDENT

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Namish Sodhi, Advocate
for the petitioner.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under section 482 BNSS, 2023/ 438 Cr.P.C seeking grant of anticipatory bail to the petitioner in FIR No. 02 dated 06.01.2026 registered under sections 306 and 61(2) of the BNS, 2023 (381, 120-B IPC) at Police Station B- Division, Amritsar, Commissionerate Amritsar.

2 Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. He contends that, apart from the allegation that the petitioner had introduced the alleged co-accused Prithivi for employment, no specific overt act has been attributed to him. It is further submitted that the

petitioner is neither alleged to have been present at the place of occurrence nor alleged to have participated in the commission of the alleged theft. Learned counsel further undertakes, on behalf of the petitioner, that he is ready and willing to join the investigation and to cooperate with the investigating agency as and when required.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Mr. Gorav Kathuria, DAG Punjab, accepts notice on behalf of respondent/State, whereas Ms. Taanvi Dhull, Advocate has put in appearance on behalf of complainant (through VC) and filed her Power of Attorney, which is taken on record.

Learned counsel for the complainant informs the Court that the matter has already been settled between the parties and complainant has no objection in case the present petitioner is admitted on bail.

3. **Analysis**

Considering the fact that the matter has already been settled between the parties as has been submitted by learned counsel for the complainant, who has no objection to the grant of anticipatory bail to the petitioner, this Court is of the considered view that the custodial interrogation of the petitioner is not warranted.

In the light of above, this Court finds no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within

a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026
Nainarajput

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No